

25STCV34888 25STCV34888

County: los-angeles

Division: Civil Law and Motion

Department: 407

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Case Number: 25STCV34888 Hearing Date: September 22, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: September 22, 2026 TRIAL DATE: Not
set

CASE: Riehl Construction Consulting, LLC v. 1231 Shadow Hills LLC

CASE NO.: 25STCV34888

DEFENDANT

1231 SHADOW HILLS LLC aka SHADOW HILL LLC'S MOTION TO EXPUNGE THE NOTICE OF
PENDING ACTION UNDER CIVIL CODE AND TO REMOVE MECHANICS LIEN FILED BY PLAINTIFF

MOVING PARTY: Defendant

1231 Shadow Hills LLC aka Shadow Hill LLC

RESPONDING

PARTY: Plaintiff

Riehl Construction Consulting, LLC

I. INTRODUCTION

Plaintiff Riehl Construction Consulting, LLC ("Riehl") brings
this action to recover the balance of \$63,384,77 for providing work, labor,
services, equipment on the property located at 1231 Shadow Hill Way, Beverly
Hills, California 90210 (the "Property") pursuant to an agreement with

defendant 1231 Shadow Hills LLC aka Shadow Hill LLC ("Shadow Hills").

On September 9, 2025, Riehl recorded a mechanics lien on the Property.

O June 25, 2026, Shadow Hills filed this motion to expunge the notice of pending action and for an order removing the mechanics lien filed by Riehl. Shadow Hills seeks an award of attorney's fees.

On September 9, 2026, Riehl filed an opposition.

On September 15, 2026, Shadow Hills filed a reply.

II. EVIDENTIARY OBJECTIONS

Riehl asserts twelve objections to the declaration of Maggie Miracle. The objections are OVERRULED.

Shadow Hills asserts two objections to the declaration of Brian Friedrich. The objections are OVERRULED.

III. LEGAL STANDARD

Under Code of Civil Procedure (CCP) section 405.30, at any time after a notice of pendency of action has been recorded, any party with an interest in the real property may apply to the court to expunge the notice. A lis pendens may be expunged either under CCP section 405.31 if the pleadings do not contain a real property claim, or under CCP section 405.32 if the court finds that the party claiming the lis pendens has not established by a preponderance of the evidence the probable validity of the real property claim. Under CCP section 405.30, the party claiming the lis pendens has the burden of proof under sections 405.31 and 405.32. The moving party has the burden of demonstrating that their pleadings contain a real property claim and that the probable validity of their real property claim can be established by a preponderance of the evidence.¿

IV. DISCUSSION

Shadow Hills seeks to expunge the mechanics lien because

(1) Riehl did not comply with Civil Code section 8146(a)(7), and (2) Riehl is not a person entitled to record a mechanics lien under Civil Code section 8400 and 8402.

The court finds the first argument

is meritorious. A claim of mechanic's

lien shall be in a verified written statement and shall include, among other things, "[a] proof of service affidavit completed and signed by the person serving a copy of the claim of mechanics lien" that shows "the date, place, and manner of service, and facts showing that the service was made in accordance with this section. The affidavit shall show the name and address of the owner or reputed owner upon whom the copy of the claim of mechanics lien was served pursuant to paragraphs (1) or (2) of subdivision (c), and the title or capacity in which the person or entity was served."

(Civ. Code, § 8416

(a)(7).) Civil

Code section 8146 further provides, "[a] copy of the claim of mechanics lien, which includes the Notice of Mechanics Lien required by paragraph (8) of subdivision (a), shall be served on the owner or reputed owner. Service shall be made as follows: [¶] (1) For an owner or reputed owner to be notified who resides in or outside this state, by registered mail, certified mail, or first-class mail, evidenced by a certificate of mailing, postage prepaid, addressed to the owner or reputed owner at the owner's or reputed owner's residence or place of business address or at the address shown by the building permit on file with the authority issuing a building permit for the work, or as otherwise provided in Section 8174." (Civ. Code, § 8416 (c)(1).) "Failure to serve the copy of the claim of mechanics lien as prescribed by this section, including the Notice of Mechanics Lien required by paragraph (8) of subdivision (a), shall cause the claim of mechanics lien to be unenforceable as a matter of law." (Civ. Code, § 8416 (e).)

Here, Shadow Hills is

the owner of the Property and its place of business is 865 Comstock Ave, 11e, Los Angeles, CA 90024. However, the proof of service attached to the mechanics lien claim is addressed to 1231 Shadow Hills LLC, c/o Maggie Miracle, 869 Tione Road, Los Angeles, CA 90077. (See Pierce Decl., Ex C.) Shadow Hills establishes that the Tione Road address is neither its place of business nor the address shown by the building permit on file. (Miracle Decl., ¶¶

9-10.) The mechanics lien is unenforceable as a matter of law. Having so concluded, the court does not address Shadow Hills' second argument.

Attorney's Fees

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Shadow Hills seeks attorney's fees and costs in the sum of \$19,577.75 for bringing this motion. "Section 405.38 changed the law by requiring (as opposed to merely authorizing) a court to award attorney's fees and costs to the party prevailing on a motion to expunge, unless the other party acted with substantial justification or other circumstances would make such an award unjust." (Shoker v. Superior Ct. of Alameda Cnty. (2022) 81 Cal.App.5th 271, 280, italics in original.)

Here, Shadow Hills is the prevailing party. The court finds an award of attorney's fees is therefore warranted. Accordingly, the court awards attorney's fees in the reduced sum of \$1,940.75.

V. CONCLUSION

The motion to expunge the mechanics lien is GRANTED. Defendant 1231 Shadow Hills LLC is awarded attorney's fees in the sum of \$1,940.75.

Defendant is ordered to give notice, unless waived.

Dated: September 22,
2026

Brock T. Hammond

Judge of the Superior Court